

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER R5-2018-0058

AMENDING WASTE DISCHARGE REQUIREMENTS
ORDER R5-2016-0020 (NPDES PERMIT NO. CA0077682)

SACRAMENTO REGIONAL COUNTY SANITATION DISTRICT
SACRAMENTO REGIONAL WASTEWATER TREATMENT PLANT
SACRAMENTO COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Central Valley Water Board) finds that:

1. On 21 April 2016, the Central Valley Water Board adopted Waste Discharge Requirements Order R5-2016-0020, prescribing waste discharge requirements for the Sacramento Regional Wastewater Treatment Plant. For the purposes of this Order, the Sacramento Regional County Sanitation District is hereafter referred to as "Discharger" and the Sacramento Regional Wastewater Treatment Plant is hereafter referred to as "Facility."
2. Waste Discharge Requirements Order R5-2016-0020 (NPDES Permit No. CA0077682) authorizes the discharge of up to 181 million gallons per day of treated municipal wastewater to the Sacramento River, a water of the United States and within the legal boundary of the Sacramento-San Joaquin Delta.
3. The Facility's treatment system consists of mechanical bar screens, aerated grit removal, primary sedimentation, pure oxygen activated sludge, secondary clarification, chlorine disinfection with dechlorination and a diffuser for river discharge. Solids handling consists of dissolved air flotation thickeners, gravity belt thickeners, anaerobic digesters and sludge stabilization basins with disposal on-site through land application or biosolids recycling facility. Wastewater is discharged to the Sacramento River at Freeport, a water of the United States.
4. The Discharger is currently conducting major facility upgrades known as the EchoWater Project to comply with the effluent water quality requirements specified by Order R5-2016-0020. The EchoWater Project has been subdivided into multiple individual projects, which are being designed and constructed. Some of the projects are infrastructure improvement projects and do not impact water quality directly, but support other projects that are critical in meeting permit requirements.
5. On 29 March 2018, the Discharger submitted a Programmatic Operations Plan for Effluent Valve Replacement Project (EVR Project). The EVR Project will replace existing effluent valves with new or refurbished valves, in a series of short term disruptions to main plant operations. During each project the Facility will be shut down for up to 48 hours to replace the valves. After the shutdown, the activated sludge system will be stressed for a further 12 days while stored primary effluent or primary influent is returned and the Facility processes are stabilized. The EVR Project is expected to occur during dry weather months (e.g., May – October) during 2018 and 2019.
6. Order R5-2016-0020 requires weekly monitoring of acute whole effluent toxicity testing (Attachment E Section V.A). The Discharger conducts a 96-hour flow through acute bioassay to meet the monitoring requirements. However, during months when the Discharger is implementing the EVR Project, it is infeasible for the Discharger to perform weekly flow-through acute toxicity test. The test requires 2 to 3 days of preparation and at least 4 days of continuous discharge flow

to perform the 96-hour flow through acute bioassay. Furthermore, there is uncertainty regarding the EVR Project schedule. After replacing valves for one project shutdown the next shutdown begins as soon as the biological treatment system recovers from the previous shutdown. This period of the shutdown and treatment system recovery is variable and difficult to predict due to the length of the shutdown needed to replace the valve. The Discharger requested to reduce the weekly monitoring of acute toxicity testing to monthly during such months.

7. Central Valley Water Board staff has reviewed the Programmatic Operation Plan for the EVR Project and agreed it is infeasible for the Discharger to perform weekly acute toxicity test during the operation of the EVR Project. Therefore, this Order amends Order R5-2016-0020 to suspend weekly acute toxicity test during months when the Discharger is implementing the EVR Project. During such months, the Discharger shall perform monthly acute toxicity testing.
8. Order R5-2016-0020 may be reopened and modified in accordance with 40 CFR § 122.62(a)(2).
9. Issuance of this Order is exempt from the provisions of the California Environmental Quality Act (Pub. Resources Code, § 21000 et seq.) ("CEQA") pursuant to Water Code section 13389, since the adoption or modification of a NPDES permit for an existing source is statutorily exempt and this Order only serves to modify a NPDES permit (*Pacific Water Conditioning Ass'n, Inc. v. City Council of City of Riverside* (1977) 73 Cal.App.3d 546, 555-556.).
10. The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to amend Waste Discharge Requirements for this discharge and has provided them with an opportunity to submit their written views and recommendations.

IT IS HEREBY ORDERED THAT:

1. Effective immediately, Waste Discharge Requirements Order R5-2016-0020 (NPDES No. CA0077682) is amended as shown in Items a-e below:
 - a. The Order number is changed from R5-2016-0020 to R5-2016-0020-01.
 - b. Cover Page. Modify the last paragraph as shown in underline/strikeout format below:

I, **Pamela C. Creedon**, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **21 April 2016**, and Order R5-2018-0058 on 2 August 2018.
 - c. Attachment E, Monitoring and Reporting Program. Modify Section V.A. as shown in underline/strikeout format below:

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

- A. Acute Toxicity Testing.** The Discharger shall conduct acute toxicity testing to determine whether the effluent is contributing acute toxicity to the receiving water. The Discharger shall meet the following acute toxicity testing requirements:

1. *Monitoring Frequency* – The Discharger shall perform weekly acute toxicity testing, concurrent with effluent ammonia sampling.⁽¹⁾

(1) The requirement to perform weekly acute toxicity testing is suspended during months when the Discharger is implementing the Programmatic Operations Plan for the Effluent Valve Replacement Project (EVR Project). During such months, the Discharger shall perform monthly acute toxicity testing. The Discharger shall specify in the monthly eSMR cover letters the dates where EVR Project activities were occurring at the Facility.

d. Attachment F, Fact Sheet. Add Section I. D as shown in underline format below:

D. This Order was amended by Order R5-2018-0058 on 2 August 2018 to suspend weekly acute toxicity test during months when the Discharger is implementing the Effluent Valve Replacement Project (EVR Project). During such months, the Discharger shall perform monthly acute toxicity testing.

e. Attachment F, Fact Sheet. Modify Section VII.C. as shown in shown in underline format below:

C. Whole Effluent Toxicity Testing Requirements

1. **Acute Toxicity.** Consistent with Order R5-2010-0114-04, weekly 96-hour bioassay testing is required to demonstrate compliance with the effluent limitation for acute toxicity.
2. On 29 March 2018, the Discharger submitted a Programmatic Operations Plan for Effluent Valve Replacement Project (EVR Project). The EVR Project will replace existing effluent valves with new or refurbished valves, in a series of short term disruptions to main plant operations. During each project the Facility will be shut down for up to 48 hours to replace the valves. After the shutdown, the activated sludge system will be stressed for a further 12 days while stored primary effluent or primary influent is returned and the Facility processes are stabilized. During months when the Discharger is implementing the EVR Project, it is infeasible for the Discharger to perform weekly flow-through acute toxicity test. The test requires 2 to 3 days of preparation and at least 4 days of continuous discharge flow to perform the 96-hour flow through acute bioassay. Furthermore, there is uncertainty regarding the EVR Project schedule. After replacing valves for one project shutdown the next shutdown begins as soon as the biological treatment system recovers from the previous shutdown. This period of the shutdown and treatment system recovery is variable and difficult to predict due to the length of the shutdown needed to replace the valve.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Resource Control Board (State Water Board) to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date of this Order, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday (including mandatory furlough days), the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at: http://www.waterboards.ca.gov/public_notices/petitions/water_quality or will be provided upon request.

I, Patrick Pulupa, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 2 August 2018.

Original Signed By

PATRICK PULUPA, Executive Officer